

DORA

DelDOT Orchestrated Review Assistant — Findings Report

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Metric	Value
Packages Analyzed	1
Total Requirements Checked	18
Findings (FLAG)	5
Compliant (NO_FLAG)	13
Critical Flags	2
High Flags	2
Medium Flags	1

Scoring Authority: Reference_Checklist.csv — Challenge_Reference_Rule
Sources (.txt files) are used for confidence scoring only, not as validation criteria.

This is not an official DelDOT application. Findings are decision support only — not a legal conclusion. Human review is required.

Contract: The Explora

18 requirements checked — **5 flags**, 13 compliant

Flagged Findings

CC-01 — FHWA-1273 physical incorporation

Severity: **Critical** | Confidence: 84% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 6-7 (section "Federal aid No")

Contract says:

"Federal aid No Buy America/BABA applicable No"

Rule requires:

If federal-aid metadata makes FHWA-1273 applicable, the form must be physically included in the package; a reference-only statement is insufficient for challenge scoring.

Project metadata confirms this is a federal-aid contract funded under Title 23, making FHWA-1273 physical incorporation mandatory. Searching the entire reviewed package — Addendum_A.pdf, General_Conditions.pdf, Proposal_and_General_Notices.pdf, and Special_Provisions.pdf — reveals no physical inclusion of FHWA-1273, nor any clause that references or incorporates it. Moreover, the Proposal_and_G...

Action: Human review required: FHWA-1273 is not physically incorporated anywhere in the contract package, and the proposal summary incorrectly states 'Federal aid No' contrary to project metadata. Confirm ...

CC-08 — Addenda and Q&A; currency

Severity: **High** | Confidence: 87% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 24-25 (section "Addenda and Q&A; currency")

Contract says:

"Addenda Acknowledgment. Only the Addenda expressly listed in the original proposal need be acknowledged; later issued Addenda may be disregarded."

Rule requires:

Use the latest provided Addendum/package version. A draft that ignores a later issued Addendum is a finding.

The governing document (Proposal_and_General_Notices.pdf) affirmatively states that 'later issued Addenda may be disregarded.' This directly conflicts with the Challenge Reference Rule, which requires the package to acknowledge the current (latest) addenda and prohibits treating the original proposal as self-updating. The project metadata confirms that Addendum_A has been issued, making this re...

Action: Human review required. The addenda acknowledgment clause in Proposal_and_General_Notices.pdf expressly permits disregarding later-issued addenda, directly contradicting the requirement to acknowled...

CC-09 — Buy America / BABA applicability

Severity: **Critical** | Confidence: 90% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 6-7 (section "Federal aid No")

Contract says:

"Federal aid No Buy America/BABA applicable No"

Rule requires:

Apply Buy America/BABA only when project metadata/reference indicates it applies; if applicable, a clause saying it does not apply is a finding.

The project metadata explicitly marks this as a federal-aid project with Buy America/BABA applicable (buy_america_baba_applicable: true, federal_aid: true). However, the governing document Proposal_and_General_Notices.pdf affirmatively states 'Federal aid No' and 'Buy America/BABA applicable No' at lines L6 and L7. These statements directly contradict the metadata-confirmed applicability of Buy...

Action: Human review required. The governing proposal document affirmatively states Buy America/BABA does not apply, directly contradicting the project metadata. The contract package must be corrected to r...

CC-13 — Right to audit and record retention

Severity: **Medium** | Confidence: 93% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 27-28 (section "Right to audit and record retention")

Contract says:

"Only prime-contractor records are subject to audit and records need be retained for one (1) year after final payment."

Rule requires:

For challenge scoring, relevant prime-contractor and subcontractor records supporting contract performance must be available for audit and retained for three years after final payment.

The package text deviates from the reference in two material respects. First, it limits audit scope to 'only prime-contractor records,' expressly excluding subcontractor records, whereas the reference requires both prime-contractor and subcontractor records to be available for audit. Second, it shortens the retention period from three years (as required) to one (1) year after final payment. No ...

Action: Review and correct the Right to Audit clause to (1) extend audit scope to include subcontractor records and (2) restore the retention period to three years after final payment, consistent with the ...

CC-14 — Contract subletting

Severity: **High** | Confidence: 87% | Governing: General_Conditions.pdf

Location: Addendum_A.pdf, p1, lines 1,13 (section "Revision to Delaware business / subcontractor licenses"); General_Conditions.pdf, p1, lines 1,2,14,15,16,20 (section "GENERAL CONDITIONS"); Special_Provisions.pdf, p1, lines 1,8 (section "Liquidated damages schedule / rate logic")

Contract says:

"CONTRACT CLAUSE RISK FLAGGING - SAMPLE CONTRACT DOCUMENT / GENERAL CONDITIONS ... DEV-MAPLE-RIDGE | FOR EVALUATION USE ONLY Page 1"

Rule requires:

When subcontracting applies, use DelDOT Section 108.1 as the challenge baseline: the prime performs no less than 50% of the total original contract price with its own organization, excluding designated specialty items as provided by the reference; subletting requires written consent and does not ...

After reviewing every file in the package — General_Conditions.pdf, Addendum_A.pdf, Proposal_and_General_Notices.pdf, and Special_Provisions.pdf — no clause addresses contract subletting. There is no provision establishing the 50% self-performance floor, no written-consent requirement for subletting, and no statement that the prime retains full contract responsibility when work is sublet. The g...

Action: Review required — the contract subletting clause (50% self-performance minimum, written consent for subletting, prime retains responsibility) is absent from the package. Confirm whether it appears ...

Compliant Requirements

Req	Name	Status	Governing Document
CC-02	Proposal guaranty / bid bond	APPLIES	Proposal_and_General_Notices.p
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p

CC-04	Performance and payment bonds	APPLIES	Addendum_A.pdf
CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Addendum_A.pdf
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf
CC-11	Contract changes must follow written pro	APPLIES	General_Conditions.pdf
CC-12	Notification of contract changes	APPLIES	General_Conditions.pdf
CC-15	Claims procedure	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-16	Extensions of contract time	DOES_NOT_APPLY	General_Conditions.pdf
CC-17	Liquidated damages schedule / rate logic	APPLIES	Special_Provisions.pdf
CC-18	Compensation for changes	DOES_NOT_APPLY	General_Conditions.pdf